

1.

CASE #	CASE NAME	HEARING NAME
CVME2503722	ELSMORE VS BROWN	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: Grant in part. Grant as to amendments alleged against prior defendants, with 5 days leave to file the amended complaint. Deny as to Duane Denzer. Confirm the MSC on October 8, 2026, and the court trial on November 13, 2026. Pursuant to the court’s department rules, all litigants and witnesses may appear remotely.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2401961	WETTELAND V. UNIVERSAL HEALTH	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Overrule Plaintiffs’ Objections. Sustain Dr. Nafiu’s Objection Nos. 1-7. GRANT the motion for summary judgment in favor of Defendant, Bolaji A. Nafiu, M.D. and against Plaintiffs.

Defendant, Dr. Nafiu, asserts that he did not breach any duty as established by his medical expert, Dr. Demetriades, who opined that Dr. Nafiu met the standard of care for surgeons practicing in the State of California in 2022 in all respects in the care and treatment provided to Karla Wetteland. (Undisputed Material Fact [“UMF”] No. 32.) Dr. Nafiu performed a complete exam of Karla and ordered all necessary diagnostic testing. (UMF No. 33.) An MRI was ordered to rule a neoplasm out. (UMF No. 34.) Dr. Nafiu properly relied on consults for orthopedic and neurosurgery issues. (UMF No. 37.) Dr. Demetriades also opined that to a reasonable medical probability, Dr. Nafiu did not cause nor contribute to any of Karla’s claimed injuries. (UMF No. 41.) Dr. Nafiu also did not contribute or cause Plaintiff’s cancer to go undiagnosed in 2022. (UMF No. 42.)

Plaintiffs assert objections to Dr. Nafiu’s expert, Demetrios Demetriades, M.D.’s declaration on grounds of lack of foundation, opinion based on improper matter, lack of personal knowledge, hearsay, lack of authentication, improper legal conclusions, and speculation. None of these objections are warranted. Dr. Demetriades is a properly qualified expert in trauma surgery and is familiar with the standard of care. (Dec. Demetriades ¶ 2, Ex. “1”.) Dr. Demetriades relies on his expertise and review of materials in this case, including Karla’s medical records. “Although hospital and medical records are hearsay, they can be admitted under the business records exception to the hearsay rule”, but they must be properly authenticated. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) The medical records are properly authenticated by Dr. Nafiu’s counsel, Lawrence D. Wong. (Dec. Wong ¶¶ 4-7, Exs. “C” – “D”).

In addition, an expert opinion must be supported by reasons or explanations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523-524.) This means that, “an expert’s opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value because an expert opinion is worth no more than the reasons and facts on which it is based.” (*Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510.) An “expert opinion that is based on speculation or conjecture is inadmissible.” (*Mitchell v. Untied Nat’l Ins. Co.* (2005) 127 Cal.App.4th 457, 478.) “Courts will exclude expert opinions based on invalid assumptions, such as on facts without evidentiary support.” (*Sanchez v. Kern Emergency*